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Public Redacted Opening Brief

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 12 Filed April 15, 2026

Mateo Serrano, through Celia Arden, submits this public opening brief from the February 25 criminal judgment. The appeal presents two distinct targets. One concerns an ordinary Guidelines objection to a three-level manager-or-supervisor adjustment. The other concerns the sentencing court's complete failure to invite Serrano personally to speak before sentence.

The plea agreement broadly relinquishes review of the conviction and sentence, including statutory sentence review, while expressly retaining a complete-denial-of-allocation claim. The targets therefore must be analyzed separately. Serrano preserves the Guidelines issue subject to any timely waiver invocation, but he does not use the allocation reservation to obtain review of an otherwise surrendered calculation dispute.

This public version replaces protected presentence and mitigation material with fixed category notices. It asks the Court to enforce the reservation according to its text, find complete denial under Rule 32, and order a full resentencing. It neither predicts the Court's ruling nor reveals confidential facts from the sealed companion.

Jurisdiction and Timeliness

The district court had subject-matter jurisdiction over Count One under 18 U.S.C. § 3231. Judgment was entered on February 25, 2026. Serrano filed his notice of appeal directly with District Clerk Tessa Wren on March 11, exactly fourteen days after entry. The certified record identifies no event that altered that chronology.

This Court has appellate jurisdiction under 28 U.S.C. § 1291 and, to the extent not relinquished, 18 U.S.C. § 3742. A contractual appeal waiver does not erase subject-matter jurisdiction; it supplies a claim-specific ground for enforcement when properly invoked. See *United States v. Boutcher*, 998 F.3d 603, 608–09 (4th Cir. 2021).

The timely notice identifies the judgment, sentence, and antecedent rulings without attempting to decide waiver scope. That is sufficient to place both appellate targets before the Court for orderly threshold treatment. Serrano does not challenge his conviction, seek withdrawal of the guilty plea, or allege government breach.

The requested relief is likewise target-specific. Any waiver ruling concerning the role adjustment can be entered without resolving the reserved allocution claim. Conversely, review of complete denial does not require an advisory ruling about the enhancement evidence.

Statement of the Case

Serrano pleaded guilty to Count One, conspiracy to commit wire fraud under 18 U.S.C. §§ 1349 and 1343. The public record describes fictional false reimbursement claims for services not performed against Meridian Community Supply Cooperative, ending November 2, 2025, with stipulated loss and restitution of \$186,400. Protected offense material is represented here by [REDACTED—FICTIONAL OFFENSE FACT].

At sentencing, the parties agreed that the 2025 Guidelines Manual applied and that exactly five people were criminally responsible. They disputed only whether Serrano supervised Alina Pared as a person. The court overruled the objection, applied three levels under U.S.S.G. § 3B1.1(b), adopted offense level 20 and criminal-history category I, and identified a range of 33 to 41 months. Confidential calculation material appears as [REDACTED—FICTIONAL GUIDELINE VALUE].

After counsel completed advocacy, the court proceeded directly to its statutory analysis. It imposed 36 months, three years of supervised release, restitution, a \$100 assessment, and no fine. Serrano was never personally invited to offer mitigation before that pronouncement. Only afterward did the court ask whether he understood appellate timing advice. No contemporaneous objection was made.

Appeal-Waiver Text and Reservation

The written agreement uses a broad surrender followed by a narrow express reservation. Serrano gave up appellate challenges to the conviction and the sentence on generally stated grounds. The provision specifically reaches review authorized by 18 U.S.C. § 3742. It then excludes one defined claim: complete denial of the defendant's own opportunity to allocute under Rule 32(i)(4)(A)(ii).

That structure matters more than any label placed on the claims. The role target contests the calculation of an advisory sentencing range and thus has the character of a conventional sentence appeal. The allocution target alleges the precise complete omission described in the reservation. The second target does not become waived merely because both alleged errors occurred at sentencing.

This public filing does not reproduce the agreement's full sentence. Short descriptions are sufficient to preserve its two operative functions without creating another verbatim copy. Any protected contextual discussion is replaced by [REDACTED—FICTIONAL SENTENCING POSITION].

The Court should read the relinquishment and reservation together. Giving effect to both permits claim-specific enforcement: the Guidelines target may be screened under the broad language, while the complete-denial claim remains available by the parties' express choice.

Rule 11 Confirmation

Federal Rule of Criminal Procedure 11(b)(1)(N) required the district court to address Serrano personally and determine whether he understood the appellate waiver. Judge Elara Venn did more than ask whether counsel had reviewed the agreement. She separately explained the ordinary conviction-and-sentence surrender, the inclusion of Guidelines disputes, and the exception for a total failure to offer personal allocution.

Serrano answered for himself. He confirmed that the role calculation could remain disputed below yet still fall within the appellate surrender. He also explained that the reserved claim concerned a complete failure to invite him to speak, not dissatisfaction with a limited opportunity. Celia Arden confirmed her advice, but the finding did not rest on counsel's understanding alone.

Boutcher directs de novo review of enforcement, including whether assent was knowing and intelligent. Smith likewise looks to the recorded colloquy and the totality of circumstances when validity is challenged. *United States v. Smith*, 134 F.4th 248, 255–61 (4th Cir. 2025).

The transcript supplies a strong validity record. At the same time, that record confirms the reservation's independent content. Knowing assent to a broad waiver is not knowing abandonment of a claim the same colloquy expressly preserved.

Severable Appellate Targets

The appeal should be treated by target rather than as an indivisible challenge to one judgment. The first target is the three-level role adjustment and the resulting advisory calculation. The second is the sentence imposed after a complete omission of personal allocution. Each can receive its own threshold and remedial disposition.

Ashford explains that a generic sentence waiver may cover an allocution claim. *United States v. Ashford*, 103 F.4th 1052, 1056–57 (4th Cir. 2024). This agreement is materially more specific because it affirmatively reserves complete denial. Applying Ashford's generic-waiver principle to erase an added reservation would disregard the text the parties selected.

Severability also avoids using a procedural reservation as a vehicle for an unrelated calculation appeal. Serrano does not contend that every sentencing issue survives because allocution survives. If the government invokes the waiver against the enhancement target and the Court finds the provision enforceable, the consequence is dismissal of that target without a merits ruling.

The remaining claim would still require briefing and decision. Its legal elements, record support, plain-error analysis, and remedy do not depend on whether the district court correctly evaluated [REDACTED—FICTIONAL ROLE RELATIONSHIP].

Standards of Review

Whether an appeal waiver is valid and whether a particular issue falls within its scope are reviewed de novo. *Boutcher*, 998 F.3d at 608–09. The inquiry distinguishes assent from coverage: Rule 11 and the totality bear on knowing agreement, while the accepted writing defines which appellate target was surrendered.

Because defense counsel did not object when the court moved from advocacy to sentence, the allocution claim is reviewed for plain error. Rule 32's personal-address command, the complete transcript, and settled circuit law govern whether an error was clear. *United States v. Jennings*, 130 F.4th 157, 161–64 (4th Cir. 2025); *United States v. Muhammad*, 478 F.3d 247, 249–51 (4th Cir. 2007).

If the role issue were reviewable, the legal person-management requirement would be applied to factual findings reviewed for clear error. *United States v. Steffen*, 741 F.3d 411, 414–16 (4th Cir. 2013). Identifying that standard helps classify the target; it does not ask the Court to decide protected facts at the waiver threshold.

Remedy is reviewed in light of the error established. For a complete denial with a real possibility of a lower sentence, Muhammad directs vacatur and resentencing rather than speculation about words never heard.

Statutory Guidelines Target

Section 3742 supplies statutory routes for challenging a sentence imposed through an assertedly incorrect Guidelines application. Serrano's role objection has exactly that ordinary character. It disputes whether the three-level adjustment was properly included and, as a result, whether offense level 20 rather than 17 supplied the advisory benchmark.

The public brief does not expose the underlying report calculation. [REDACTED—FICTIONAL GUIDELINE VALUE] stands for protected arithmetic and its presentence explanation. Public orders establish only the two ranges already announced in open court: 33 to 41 months with the adjustment and 24 to 30 months without it.

Calling the claim statutory does not resolve waiver scope in Serrano's favor. The agreement expressly contemplated sentence review under § 3742. Nor does the advisory character of the Guidelines transform a routine application dispute into a challenge to the court's power.

Serrano preserves the target so the Court can enter the correct claim-specific disposition after any waiver invocation. He does not merge it with allocution, allege that the imposed 36-month term exceeded a statutory maximum, or contend that the plea agreement predetermined the calculation. The Court can classify the target without adjudicating whether the enhancement was factually sound.

Role-Enhancement Scope

The disputed adjustment arose under U.S.S.G. § 3B1.1(b). The parties agreed on a five-person conspiracy and disagreed only about whether Serrano exercised management or supervision over Pared. The protected relationship record is replaced by [REDACTED—FICTIONAL ROLE RELATIONSHIP]; no transaction detail is necessary to identify the appellate target.

The district court found limited person management and added three levels. Serrano preserved his objection at sentencing. His proposed appellate inquiry would ask whether the court drew a permissible inference from the protected interactions. That is a classic Guidelines-application question rather than a challenge to the validity of the guilty plea or an allegation of prosecutorial breach.

The waiver's reference to sentence appeals and § 3742 supplies the government's anticipated scope argument. Serrano may dispute enforcement in response to a proper motion, but the role issue cannot be recast as allocution merely because a resentencing on the reserved claim could later require a new calculation.

Target-specific treatment protects both positions. Dismissal under an enforceable waiver would express no view about supervision. If the threshold defense were unavailable, the role record could be addressed through the ordinary appellate process. Either way, the allocution reservation retains the distinct meaning confirmed at the plea hearing.

Person-Management Boundary

Steffen states the relevant legal line: § 3B1.1 requires management or supervision of another criminally responsible participant, and property or activity management alone is insufficient. 741 F.3d at 414–16. The 2025 Manual retains that person-focused requirement for the adjustment applied here.

The protected materials contain competing characterizations of Serrano's interactions with Pared. The defense described cooperation among autonomous participants; the government and Probation described limited direction. Those accounts are collectively marked [REDACTED—FICTIONAL ROLE RELATIONSHIP]. They are not repeated in this public version and no actionable offense method appears.

For present purposes, the point is the nature of the claim, not which account should prevail. A panel enforcing the waiver should dismiss the enhancement target rather than affirm the district court's finding on the merits. Affirmance would unnecessarily decide a factual issue the waiver removes from appellate review.

Serrano conditionally preserves the objection without requesting a threshold merits adjudication. The Court need decide only whether this person-management dispute is among the sentence challenges surrendered. Nothing in that classification determines how the Guidelines must be recalculated at a future resentencing if independent relief is later granted on the reserved allocution claim.

Express Allocution Reservation

The agreement separately protects a claim based on complete denial of the personal opportunity required by Rule 32(i)(4)(A)(ii). That language matches the event alleged here. Serrano does not complain that the court limited his remarks, interrupted him, or rejected a preferred topic. He received no invitation to offer mitigation before sentence.

Ashford involved a generic sentencing waiver and therefore treated allocution as falling within its ordinary breadth. 103 F.4th at 1056–57. It does not authorize a court to delete a negotiated exception. Boutcher's scope inquiry likewise enforces the agreement actually made, including limitations on what was surrendered.

The Rule 11 record removes any suggestion that the reservation was incidental. Judge Venn explained the broad surrender and then separately tested Serrano's understanding of the complete-denial exception. The government confirmed the same division at the plea hearing and no breach allegation is needed to give it effect.

Protected advocacy concerning the reservation is denoted [REDACTED—FICTIONAL SENTENCING POSITION]. The public legal conclusion is straightforward: enforcement against an ordinary role-calculation target does not bar review of a procedural claim that the writing and colloquy expressly left outside the waiver.

Complete Denial at Sentencing

Rule 32 required the court, before imposing sentence, to address Serrano personally and permit him to speak or present mitigating information. Counsel completed her argument and described categories of mitigation. Judge Venn then asked only whether counsel had anything further and announced that she would proceed.

The transcript expressly records what did not occur. Serrano remained beside counsel with prepared remarks, but the court never invited him to deliver them. Arden did not object. The court moved through statutory reasons, pronounced all custodial and financial terms, and only afterward addressed Serrano about the time for filing an appeal.

Counsel's advocacy was not personal allocution. Nor did the preliminary question whether Serrano could hear and consult with counsel invite mitigation. Jennings distinguishes reasonable control of an opportunity actually granted from a complete omission. Muhammad holds that a total failure to offer the defendant that personal chance is plain error when a lower sentence was genuinely possible.

The public transcript and minute summary establish the sequence without exposing sealed history. This is not a dispute about tone, duration, or content; it is the absence of the required invitation before the sentence became final in open court.

Prejudice and Mitigation

The record supplies more than an abstract wish to speak. Before the hearing, Serrano prepared remarks addressing remorse and post-offense change. Defense counsel sought 24 months rather than the 36 months imposed and specifically told the court that Serrano's own voice could convey matters counsel could not duplicate.

This public brief preserves confidentiality. [REDACTED—FICTIONAL MITIGATION DETAIL] represents protected treatment and rehabilitation material. [REDACTED—FICTIONAL PERSONAL DETAIL] represents nonpublic family and employment circumstances. The sealed filing and open transcript confirm that these categories existed, were timely presented, and bore on the court's selection within or below the advisory range.

The judge credited mitigation enough to select a term below the top of the 33-to-41-month range. That choice demonstrates genuine discretion remained. A personal statement could have affected the weight assigned to remorse, future conduct, treatment, caregiving, or lawful work even though counsel had summarized those topics.

Under Muhammad, Serrano need not prove what sentence would certainly have followed. The question is whether a lower term was possible. The 36-month sentence stood three months above the adopted range's 33-month floor and twelve months above the defense's concrete 24-month request. That available variance and the unheard prepared remarks satisfy the possibility standard.

Full Resentencing Remedy

Complete denial cannot be repaired by treating counsel's earlier argument as a substitute or by accepting a written statement after judgment. The personal opportunity must precede sentence so the defendant's words can inform the court's exercise of discretion. Once the opportunity was omitted, the appropriate remedy under Muhammad is vacatur of the sentence and remand for resentencing.

The resentencing should be full rather than confined to a ceremonial invitation. A criminal sentence is an integrated judgment involving the advisory calculation, statutory factors, imprisonment, supervision, and financial terms. After hearing Serrano, the district court must be free to reconsider the package and explain a new sentence on the then-applicable record.

That requested remedy does not evade the waiver ruling on the separate enhancement appeal. Dismissal of the role target would mean only that this Court does not adjudicate that issue in the present appeal. It would not freeze a Guidelines finding against ordinary reconsideration when the sentence itself has been vacated for an expressly reserved error.

[REDACTED—FICTIONAL SENTENCING POSITION] marks protected remedial advocacy. Serrano asks for no ruling on his conviction and no guaranteed lower term. He asks for the proceeding Rule 32 required before lawful sentencing discretion was exercised.

Protected-Record Boundary

Four lower-court sealed volumes contain the presentence packet, objection exchange, and party sentencing memoranda. Their public counterparts are category indexes, not redacted reports. This brief follows the same boundary and does not disclose protected sources through paraphrase or inference.

The six notices used here have fixed meanings: [REDACTED—FICTIONAL OFFENSE FACT], [REDACTED—FICTIONAL ROLE RELATIONSHIP], [REDACTED—FICTIONAL GUIDELINE VALUE], [REDACTED—FICTIONAL MITIGATION DETAIL], [REDACTED—FICTIONAL SENTENCING POSITION], and [REDACTED—FICTIONAL PERSONAL DETAIL]. Each identifies a subject omitted from public presentation; none is a summary of the sealed text.

The separately filed sealed companion uses corresponding subjects so the Court can review authorized material without exposing it publicly. Public readers may rely on the plea agreement, hearing transcripts, orders, judgment, and category surrogates. They receive no provider, employer, family identity, financial account, communication route, or operational description of misconduct.

This access distinction affects presentation, not the issues. The public record independently shows the waiver structure, the fact of the role dispute, the omitted personal invitation, counsel's 24-month request, and the 36-month sentence. Those facts permit resolution without compromising protected information.

Conclusion

The Court should give both parts of the plea agreement operative effect. The ordinary role-calculation target and the expressly retained complete-denial claim are severable. If the government timely invokes the waiver and establishes enforcement, the proper disposition of the enhancement target is dismissal alone, without an appellate view about whether Serrano supervised Pared.

The allocution claim must continue. The sentencing court moved from counsel's advocacy to sentence without asking Serrano personally whether he wished to speak. Post-sentence timing advice did not cure that omission. Because protected mitigation, a prepared statement, and the competing sentencing requests show a real possibility of a lower term, the error satisfies plain-error review under *Jennings* and *Muhammad*.

Serrano respectfully requests that the Court vacate the sentence and remand for a complete resentencing at which he is personally offered allocution. He does not seek to disturb the conviction. Any threshold order concerning the enhancement should expressly leave the reserved claim and its requested remedy available for decision.

Celia Arden signs this fictional brief for Mateo Serrano through the Federal Defender Exercise Office for the Middle District of North Carolina. Service on Bram Ives occurs through the synthetic appellate channel without any real address, credential, or filing account.